UNITED STATES DISTRICT COURT
IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA
FOR THE DISTRICT OF COLUMBIA

KRIS ESTRADA,
KRIS ESTRADA,
Plaintiff,
Plaintiff,
v.
AMERICAN UNIVERSITY &
BRAD KNIGHT,
Defendants.
AMERICAN UNIVERSITY &
BRAD KNIGHT,

Defendants.

Civil Action No. 26-cv-00603-ABJ
Civil Action No. 26-cv-00603-ABJ

DEFENDANT AMERICAN UNIVERSITY'S MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFF KRIS ESTRADA'S COMPLAINT WITH PREJUDICE

DEFENDANT AMERICAN UNIVERSITY'S MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF ITS MOTION TO DISMISS PLAINTIFF KRIS ESTRADA'S COMPLAINT WITH PREJUDICE

TABLE OF CONTENTS

TABLE OF AUTHORITIES iii

INTRODUCTION 1

ALLEGED FACTS AND PROCEDURAL BACKGROUND 2

A. Plaintiff Enrolls at American University. 2

B. Defendant Knight's Interactions with Plaintiff. 2

C. The July 3, 2024 Encounter. 3

D. American University Investigates Plaintiff's Allegations. 4

E. Plaintiff Attempts to Initiate a Second Internal Complaint. 5

F. The University Continues and Completes an Investigation of Potential "Non-Title IX Sexual Misconduct." 6

G. Plaintiff Files this Civil Action. 7

LEGAL STANDARD 7

ARGUMENT 8

I. THE COURT SHOULD DISMISS PLAINTIFF'S TITLE IX DELIBERATE INDIFFERENCE CLAIM (COUNT I). 8

A. Pleading a Prima Facie Case of Deliberate Indifference. 8

B. Plaintiff's Complaint Does Not Plausibly Allege that the Purported Harassment Was Severe or Pervasive. 10

C. Plaintiff Fails to Plausibly Allege that the University's Response Evidenced Deliberate Indifference to His Concerns. 11

D. Plaintiff Also Does Not Plausibly Allege That the University's Purported Deliberate Indifference Caused Him to Undergo Additional Harassment or Make Him "Liable or Vulnerable To It." 13

i. Plaintiff Does Not Plead that He Endured Any Further Actionable Harassment Following the Initiation of Title IX Proceedings. 14

ii. Plaintiff Does Not Plead Facts Plausibly Indicating that the University's Response Made Him More "Vulnerable" to Harassment. 14

II. THE COURT SHOULD DISMISS PLAINTIFF'S BREACH OF CONTRACT CLAIM (COUNT II). 15

A. Pleading Breach of Contract Pursuant to District of Columbia Law 16

B. Plaintiff Fails to Identify any Specific Enforceable Contractual Provision That the University Breached During the Investigation. 16

INTRODUCTION

Plaintiff Kris Estrada's ("Plaintiff") Complaint should be dismissed with prejudice as to Defendant American University ("University" or "Defendant").

Plaintiff alleges that on July 3, 2024, he engaged in a single sexual encounter with the University's then-Assistant Dean of Undergraduate Education, Brad Knight ("Defendant Knight" or "Knight"). Plaintiff initially believed that "a lot of what happened was consensual", and he acknowledges that he never heard from Knight again after that single encounter. Six months later, Plaintiff decided that the July 2024 interaction "felt weird" due to the "power dynamic," and he sought to pursue internal university complaints against Defendant Knight.[1]

Plaintiff's internal complaints against Defendant Knight were investigated under both the University's Title IX and "Non-Title IX" Sexual Misconduct Policies. Ultimately, it was determined that there was no policy violation. While Plaintiff may not be happy with the outcome of the investigation, and is surely not happy that he has been dismissed from the University for unrelated reasons, his unhappiness does not support a cognizable cause of action under any theory.

The University's Motion to Dismiss should be granted and Counts I and II of the Complaint dismissed, with prejudice.

[1] Perhaps not coincidentally, Plaintiff was being investigated himself in this time frame for voyeurism, which led to his guilty plea on misdemeanor charges and subsequent dismissal from the University.

ALLEGED FACTS AND PROCEDURAL BACKGROUND

A. Plaintiff Enrolls at American University.

A. Plaintiff Enrolls at American University.

Plaintiff enrolled at American University for the Fall 2023 semester. Complaint ¶ 7

Plaintiff enrolled at American University for the Fall 2023 semester. Complaint ¶ 7 (hereinafter "Compl."). As a first-year student, Plaintiff was required to complete the "AU Core

(hereinafter "Compl."). As a first-year student, Plaintiff was required to complete the "AU Core Curriculum." Id. ¶ 41. During the fall of 2023, Defendant Knight served as the Assistant Dean of

Curriculum." *Id.* ¶ 41. During the fall of 2023, Defendant Knight served as the Assistant Dean of Undergraduate Education and Senior Director of the AU Core Curriculum. Id. ¶ 42. Defendant

Undergraduate Education and Senior Director of the AU Core Curriculum. *Id.* ¶ 42. Defendant Knight also led the University College Program and was part of the leadership team for the "AU

Knight also led the University College Program and was part of the leadership team for the "AU Cornerstone" program. Id. ¶ 44. While enrolled at the University, Plaintiff was a member of both

Cornerstone" program. *Id.* ¶ 44. While enrolled at the University, Plaintiff was a member of both programs. Id. ¶ 43.

B. Defendant Knight's Interactions with Plaintiff.

programs. *Id.* ¶ 43.

On October 31, 2023, Defendant Knight emailed Plaintiff, introducing himself and

B. Defendant Knight's Interactions with Plaintiff.

welcoming Plaintiff to the University College program. Id. ¶ 45. In the email, Knight sought feedback

On October 31, 2023, Defendant Knight emailed Plaintiff, introducing himself and from Plaintiff on potential improvements to the University College experience. Id. ¶ 46.

welcoming Plaintiff to the University College program. *Id.* ¶ 45. In the email, Knight sought Plaintiff and Defendant Knight did not speak again until the following summer. Id. ¶ 48. On

feedback from Plaintiff on potential improvements to the University College experience. *Id.* ¶ 46. June 26, 2024, Defendant Knight initiated a conversation with Plaintiff over Grindr, "a dating and

chat platform for gay men." Id. Plaintiff alleges that after some pleasantries, Defendant Knight turned Plaintiff and Defendant Knight did not speak again until the following summer. *Id.* ¶ 48.

the conversation sexual by suggesting that the University's library was a good place to engage in On June 26, 2024, Defendant Knight initiated a conversation with Plaintiff over Grindr, "a dating

intimate activities. Id. ¶¶ 56-60. Plaintiff maintains that he "responded in kind," as he was "unsure and chat platform for gay men." *Id.* Plaintiff alleges that after some pleasantries, Defendant

how he felt about the situation." Id. ¶ 62. After Plaintiff "responded in kind," Knight turned the conversation sexual by suggesting that the University's library was a good place

Although the University disagrees with many of the allegations and characterizations offered in to engage in intimate activities. *Id.* ¶¶ 56-60. Plaintiff maintains that he "responded in kind," as

Plaintiff's Complaint, it and the Court are required to accept all well-pleaded facts as true for purposes he was "unsure how he felt about the situation." *Id.* ¶ 62. After Plaintiff "responded in kind,"

of this Motion only. However, conclusory assertions and declarative statements are entitled to no such

deference. See Ralls Corp. v. Comm. on Foreign Inv. in U.S., 758 F.3d 296, 314-15 (D.C. Cir. 2014)

("We do not accept as true, however, the plaintiff's legal conclusions or inferences that are unsupported

[2] Although the University disagrees with many of the allegations and characterizations by the facts alleged."). Defendant Knight sent what Plaintiff found to be another sexually suggestive

offered in Plaintiff's Complaint, it and the Court are required to accept all well-pleaded facts as message, writing that "maybe one day we'll find ourselves in the library at the same time." Id. ¶ 63.

true for purposes of this Motion only. However, conclusory assertions and declarative statements Plaintiff declined that request to have a romantic encounter with "an employee" in a public place.

are entitled to no such deference. *See Ralls Corp. v. Comm. on Foreign Inv. in U.S.*, 758 F.3d 296, 314-15 (D.C. Cir. 2014) ("We do not accept as true, however, the plaintiff's legal conclusions or inferences that are unsupported by the facts alleged").

Defendant Knight sent what Plaintiff found to be another sexually suggestive message, writing that "maybe one day we'll find ourselves in the library at the same time." *Id.* ¶ 63. Plaintiff pleads that he reacted to that comment message with "an emoji," notably failing to indicate what the emoji was. *Id.* ¶ 64. The two then discussed a paper Plaintiff was working on, and then the conversation ended. *Id.* ¶ 65.

Roughly one week later, on July 2, 2024, Defendant Knight reached out to Plaintiff to inquire about the status of Plaintiff's paper. *Id.* ¶ 66. Plaintiff states that the conversation that day focused on his summer classes and schoolwork. *Id.* ¶ 67. The next day, July 3, 2024, Defendant Knight allegedly messaged Plaintiff again, this time asking if he was "horny." *Id.* ¶ 70. Plaintiff indicated that "yes," he was, and he asked Defendant Knight, "what about you?" *Id.* ¶ 71. Defendant Knight purportedly affirmed that he was "a little bit" horny. *Id.* ¶ 72. Plaintiff responded with, in his own words, "flirtation," saying, "maybe I could change that." *Id.* ¶ 73. Defendant Knight subsequently indicated that, if the Plaintiff were to perform oral sex on him, that could help him "focus" at his next meeting. *Id.* ¶ 74.

C. The July 3, 2024 Encounter.

That same day, Knight indicated that he wanted Plaintiff to perform oral sex on him in the first-floor bathroom of the Mary Graydon Student Center (the "Student Center"). Compl. ¶ 76. Plaintiff "initially agreed to go," but subsequently became nervous upon spotting another person using the bathroom. *Id.* ¶ 77.

Defendant Knight reportedly entered the bathroom and messaged Plaintiff that "the location might not work." *Id.* ¶ 78-79. After the other person left the Student Center bathroom, Knight "crawled underneath the divider between the stalls, exposing his erect penis and motioning for [Plaintiff] to come to his stall." *Id.* ¶ 84. Plaintiff, apparently having decided to enter the bathroom after all, did so. Once Plaintiff entered the same stall, Defendant Knight grabbed Plaintiff's genitals, after which Plaintiff performed oral sex on him. *Id.* ¶¶ 86-88. Plaintiff maintains that Defendant Knight took photographs and recordings of Plaintiff and Knight engaged in this sexual act, and Plaintiff further maintains that he did not consent to being recorded or photographed. *Id.* ¶¶ 88-89.

Plaintiff confirms that he "never heard from Dean Knight again" after this July 3, 2024 encounter. *Id.* ¶ 92.

bathroom after all, did so. Once Plaintiff entered the same stall, Defendant Knight grabbed Plaintiff's genitals, after which Plaintiff performed oral sex on him. *Id.* ¶¶ 86-88. Plaintiff maintains that Defendant Knight took out his phone and potentially either recorded Plaintiff or took photographs of him engaged in this sexual act, and Plaintiff further maintains that he did not consent to being recorded or photographed. *Id.* ¶¶ 88-89.

Plaintiff confirms that he "never heard from Dean Knight again" after this July 3, 2024 encounter. *Id.* ¶ 92.

D. American University Investigates Plaintiff's Allegations.

On January 7, 2025 -- nearly six months later – Plaintiff claims that his faculty adviser reached out to Lauren Stocks-Smith, an Equity and Title IX (ETIX) investigator, to inform her about the July 2024 interaction between Plaintiff and Defendant Knight. *Id.* ¶ 94. Ms. Stocks-Smith conducted an intake interview with Plaintiff just two (2) days later. *Id.* ¶ 95. Plaintiff apparently told Ms. Stocks-Smith that while he "initially believed a lot of what happened was consensual", it 'felt weird' due to the 'power dynamic' between the two." *Id.* ¶ 96. Plaintiff also advised Ms. Stocks-Smith that he did not consent to any recording or photography. Id. ¶ 97.

On January 16, 2025, Selena Benitez-Cuffee, a Title IX Case Manager at the University, emailed Plaintiff to ask how he wanted to proceed "if the University's Title IX Office determined that the conduct as alleged fell within the scope of its policies." Id. ¶ 98. Plaintiff informed the Title IX office that he wanted to move forward with a formal complaint against Defendant Knight. Id. ¶ 99. Plaintiff intimates that he wanted the University to move forward right away, and was unhappy with what he perceived as a delay, but also acknowledges that the Interim Title IX Coordinator, Laura Buchs, informed him that a Notice of Allegations was being drafted and an investigator would be assigned "when one was available." *Id.* ¶¶ 100-102.

On April 7, 2025, Plaintiff received a Notice of Investigation from Ms. Buchs. Id. ¶ 103. A few days later, Plaintiff heard from Marissa Abraham, the investigator assigned to his case. Id. ¶ 104. Ms. Abraham allegedly indicated that, upon her initial review of Plaintiff's complaint, she did not believe that his encounter with Defendant Knight contravened any University policies, but he was free to "present contrary evidence" to her. Id. Ms. Abraham requested to interview Plaintiff and asked him to send over pertinent evidence and discuss potential witnesses. Id. ¶ 106. On May 12, 2025, Plaintiff submitted a written statement to Ms. Abraham. Id. ¶ 107. On May 15, the investigator was removed Plaintiff. Id. ¶ 108.

On June 26, 2025, Plaintiff was dismissed from the University after he pled guilty to unrelated misdemeanor voyeurism charges. Id. ¶ 7 n.1. The University's investigation into Plaintiff's complaint investigator would be assigned "when one was available." *Id.* ¶¶ 100-102.

against Defendant Knight continued, although Plaintiff alleges the investigation was reassigned to Ms. Buchs on or about July 16, 2025. Id. ¶ 110.

A few days later, Plaintiff heard from Marissa Abraham, the investigator assigned to his case. *Id.* ¶ 104. Ms. Abraham allegedly indicated that, upon her initial review of Plaintif's complaint, she did not believe that his encounter with Defendant Knight contravened any University policies, but he was free to "present contrary evidence" to her. *Id.* Ms. Abraham requested to interview Plaintiff and asked him to send over pertinent evidence and discuss potential witnesses. *Id.* ¶ 106. On May 12, 2025, Plaintiff submitted a written statement to the investigator. *Id.* ¶ 107. On May 15, the investigator interviewed Plaintiff. *Id.* ¶ 108.

E. Plaintiff Attempts to Initiate a Second Internal Complaint.

Plaintiff alleges that, during the Title IX investigatory process, he also initiated a formal unrelated misdemeanor voyeurism charges. *Id.* ¶ 7 n.1. The University's investigation into complaint pursuant to the University's faculty manual. Id. ¶ 133. Ms. Monica Jackson, the Deputy Plaintiff's complaint against Defendant Knight continued, although Plaintiff alleges the Provost and Dean of Faculty, received the complaint and emailed Plaintiff, informing him that, among investigation was reassigned to Ms. Buchs on or about July 16, 2025. *Id.* ¶ 110.

On July 25, 2025, the University dismissed Plaintiff's formal Title IX complaint. *Id.* ¶ 112.

F. The University Continues and Completes an Investigation of Potential "Non-Title IX Sexual Misconduct."

Plaintiff avers that no federal regulations permit the University to dismiss a complaint "prior to investigating" allegations of sexual harassment, *Id.* ¶ 117 -- having pled, of course, that an investigation was conducted. *Id.* ¶¶ 107-08, 110.

On August 1, 2025, Plaintiff appealed the dismissal of his internal Title IX complaint. *Id.* ¶ 125. Roughly one month later, Amy Krumenacker, the Manager of Employee Relations & Compliance for the Office of Human Resources, affirmed the dismissal. *Id.* ¶ 129.

E. Plaintiff Attempts to Initiate a Second Internal Complaint.

Plaintiff alleges that, during the Title IX investigatory process, he also initiated a formal complaint pursuant to the University's faculty manual. *Id.* ¶ 133. Ms. Monica Jackson, the Deputy Provost and Dean of Faculty, received the complaint and emailed Plaintiff, informing him that, other things, Defendant Knight (an administrator) was not a faculty member, and, therefore, Plaintiff should continue with the Title IX policy. Id. ¶¶ 138-39.

F. The University Continues and Completes an Investigation of Potential "Non-Title IX Sexual Misconduct."

Plaintiff avers that no federal regulations permit the University to dismiss a complaint "prior to investigating" allegations of sexual harassment, *Id.* ¶ 117 -- having pled, of course, that an investigation was conducted. *Id.* ¶¶ 107-08, 110.

On August 1, 2025, Plaintiff appealed the dismissal of his internal Title IX complaint. *Id.* ¶ 125. Roughly one month later, Amy Krumenacker, the Manager of Employee Relations & Compliance for the Office of Human Resources, affirmed the dismissal. *Id.* ¶ 129.

E. Plaintiff Attempts to Initiate a Second Internal Complaint.

Plaintiff alleges that, during the Title IX investigatory process, he also initiated a formal complaint pursuant to the University's faculty manual. *Id.* ¶ 133. Ms. Monica Jackson, the Deputy Provost and Dean of Faculty, received the complaint and emailed Plaintiff, informing him that,

among other things, Defendant Knight (an administrator) was not a faculty member, and, therefore, Plaintiff should "continue with the Title IX office." *Id.* ¶¶ 138-39.

F. The University Continues and Completes an Investigation of Potential "Non-Title IX Sexual Misconduct."

Plaintiff's Complaint jumps from the "refusal" to consider a separate faculty complaint against Defendant Knight to an averment that on October 21, 2025, the University found Defendant Knight "not responsible" for any violation of the "**Non-Title IX**" Sexual Misconduct Policy. *Id.* ¶¶ 140-41 (emphasis added). While he does not highlight it, this core fact eviscerates Plaintiff's argument of indifference; namely, that while the University dismissed Plaintiff's formal Title IX complaint under the narrowly prescribed definitions of sexual harassment required by the 2020 Title IX regulations (Complaint, ¶ 15), it **continued to investigate** Plaintiff's allegations under the University's separate Non-Title IX Sexual Misconduct Policy. See Exhibit A, attached hereto.[3]

Defendant Knight "became disassociated" with the University as of December 4, 2025. Id. ¶ 154.

G. Plaintiff Files this Civil Action.

On February 19, 2026, Plaintiff filed this action in the United States District Court for the District of Columbia. (ECF No. 1). In this suit, he asserts three claims: (1) Deliberate Indifference under Title IX against the University; (2) Breach of Contract against the University; and (3) Intrusion Upon Seclusion against Defendant Knight. The University takes no position at this time on the direct claims against Defendant Knight.

[3] Exhibit A consists of the first two pages of the Investigation Report that investigator Marissa Abraham drafted after completing her investigation of Plaintiff's allegations against Knight. The first two pages explain the context of the investigation, a detailed timeline of the investigation work, and a list of Exhibits A-N showing all of the evidence gathered and considered by the Investigator. As Plaintiff's core allegation is that his concerns were not investigated, the University believes these first two pages of the Report are most relevant and sufficient for the Court's consideration of the current Motion. At this time, the University is not attaching the entire report here, which contains salacious details of Plaintiff and Knight's encounter that may be embarrassing to Plaintiff. Should the Court wish to see the entire Report, the University of course will supplement this filing with same and/or provide it for *in camera* review.

It is appropriate for the Court to consider these materials at the motion to dismiss stage as they are "referred to in the complaint, integral to the claim(s), and if their authenticity is undisputed." *Langeman v. Garland*, 88 F.4th 289, 292 (D.C. Cir. 2023) (internal quotation omitted). The allegation that the University declined to engage in "some form of investigation" is integral to Plaintiff's deliberate indifference and breach of contract claims, and is flatly contradicted by Exhibit A.

One week after the Non-Title IX Finding, Plaintiff sent the University a demand letter, already teeing up potential litigation. *Id.* ¶ 152.

Defendant Knight "became disassociated" with the University as of December 4, 2025. *Id.* ¶ 154.

G. Plaintiff Files this Civil Action.

On February 25, 2026, Plaintiff filed this action in the United States District Court for the District of Columbia. (ECF No. 1.) In this suit, he asserts three claims: (1) Deliberate Indifference under Title IX against the University; (2) Breach of Contract against the University; and (3) Intrusion Upon Seclusion against Defendant Knight. The University takes no position at this time on the direct claims against Defendant Knight.

ARGUMENT

LEGAL STANDARD

To avoid dismissal under Fed. R. Civ. P. 12(b)(6), a complaint must plead "enough facts to state a claim to relief that is plausible on its face," and must provide "more than labels and conclusions [or] a formulaic recitation of the elements." *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 555 (2007). A complaint does not "suffice if it tenders naked assertions devoid of further factual enhancement." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (internal quotation marks omitted and citation modified). Rather, "the complaint must allege facts that 'plausibly suggest' – and are 'not merely consistent with' – the defendant's liability." *Bryant v. Taylor*, 244 F. Supp. 3d 209, 212 (D.D.C. 2017) (citing *Twombly*, 550 U.S. at 557, 567). "[T]he Court need not accept inferences drawn by [a] plaintiff if those inferences are not supported by the facts set out in the complaint, nor must the court accept legal conclusions cast as factual allegations." *Hettinga v. United States*, 677 F.3d 471, 476 (D.C. Cir. 2012).

I. THE COURT SHOULD DISMISS PLAINTIFF'S TITLE IX DELIBERATE INDIFFERENCE CLAIM (COUNT I).

In Count I of his Complaint, Plaintiff alleges that the University violated Title IX by exhibiting deliberate indifference to his allegations of sexual harassment. Plaintiff maintains that, through the filing of a disciplinary report and Title IX complaint, he put the University on notice as to Defendant Knight's misconduct, but the University ignored his concerns and failed to investigate or respond to his concerns, and that this inadequacy rose to the level of deliberate indifference. Id. ¶¶ 172-75.

ARGUMENT

I. THE COURT SHOULD DISMISS PLAINTIFF'S TITLE IX DELIBERATE INDIFFERENCE CLAIM (COUNT I).

In Count II of his Complaint, Plaintiff alleges that the University violated Title IX by exhibiting deliberate indifference to his allegations of sexual harassment. Plaintiff maintains that, through the filing of a disciplinary report and Title IX complaint, he put the University on notice as to Defendant's Knight's conduct. Compl. ¶¶ 94, 133. Plaintiff asserts that the University inadequately responded to his concerns, and that this inadequacy rose to the level of deliberate indifference. *Id.* ¶¶ 172-75.

A. Pleading a Prima Facie Case of Deliberate Indifference.

"Title IX seeks to eliminate sex-based discrimination in education programs that receive federal funds." *Doe v. Columbia*, 151 F.4th 435, 445 (D.C. Cir. 2025). The statute provides, in relevant part, that "[n]o person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance." 20 U.S.C.§ 1681(a). "Title IX implies a private right of action to enforce its prohibition on sex discrimination." *Wells v. Hense*, 235 F. Supp. 3d 1, 7 (D.D.C. 2017). Therefore, private parties may seek monetary damages for intentional violations of the statute. *Franklin v. Gwinnett Cnty. Pub. Schs.*, 503 U.S. 60, 76 (1992). This private right of action "encompasses claims" for deliberate indifference to allegations of sexual harassment. *See Wells*, 235 F. Supp. 3d at 7. However, as the Supreme Court explained in the seminal deliberate indifference case, *Davis v. Monroe County Board of Education*, private damages actions require intentional discrimination, and are limited "to cases having a systemic effect on educational programs or activities." *Davis v. Monroe Cnty. Bd. of Educ.*, 526 U.S. 629, 653 (1999) ("*Davis*").

"To prevail on a claim of deliberate indifference to sexual harassment, a plaintiff must satisfy five elements." Doe, 151 F.4th at 446; Compl., ¶ 166.

First, the sexual harassment complained of must be so severe, pervasive, and objectively offensive . . . that the victim-students are effectively denied equal access to an institution's resources and opportunities. Second, monetary damages are addressed to the harassment must have actual knowledge of the harassment. Third, the recipient must have substantial control over both the harasser and the context in which the known harassment occurs. Fourth, the recipient's response or failure to respond must amount to deliberate indifference to known acts of harassment. Fifth, that deliberate indifference must subject its students to harassment. That is, the deliberate indifference must, at a minimum, cause students to undergo harassment or make them liable or vulnerable to it. Id. (citation modified).

"To prevail on a claim of deliberate indifference to sexual harassment, a plaintiff must satisfy five elements." *Doe*, 151 F.4th at 446; Compl., ¶ 166.

First, the sexual harassment complained of must be so severe, pervasive, and objectively offensive that the victim-students are effectively denied equal access to an institution's resources and opportunities. Second, an official with authority to address the harassment must have actual knowledge of that harassment. Third, the recipient must have substantial control over both the harasser and the context in which the known harassment occurs. Fourth, the recipient's response or failure to respond must amount to deliberate indifference to known acts of harassment. Fifth, that deliberate indifference must subject its students to harassment. That is, the deliberate indifference must, at a minimum, cause students to undergo harassment or make them liable or vulnerable to it.

Id. (citation modified). "Deliberate indifference claims 'are typically brought in cases where a school has ignored a victim's complaint of sexual harassment or assault.'". *Robinson v. Howard Univ., Inc.*, 335 F. Supp. 3d 13, 28 (D.D.C. 2018) (citing *Doe v. Brown Univ.*, 166, 191 F. Supp. 3d 177 (D.R.I. 2016)). "A court, accordingly, may find 'deliberate indifference' only if the university's response, or failure to respond, 'to the harassment . . . is ***clearly unreasonable*** in light of the known circumstances." *Cavalier v. Cath. Univ. of Am.*, 306 F. Supp. 3d 9, 26 (D.D.C. 2018) (emphasis added) (citing *Davis*, 526 U.S. at 648). "In an appropriate case, there is no reason why courts, on a motion to dismiss, . could not identify a response as not 'clearly unreasonable' as a matter of law." *Davis*, 526 U.S. at 649. "In resolving the University's motion to dismiss, the Court must refrain from second-guessing the disciplinary decisions made by school administrators, and must distinguish between allegations of insensitivity, negligence, or lack of zeal—which are not actionable—and allegations of deliberate indifference to known acts of harassment in [the University's] programs or activities." *Cavalier*, 306 F. Supp. 3d at 27 (internal quotations omitted).

For the reasons outlined herein, Plaintiff's Complaint insufficiently alleges the first, fourth, and fifth elements of a prima facie deliberate indifference case. Each is discussed in turn.

B. Plaintiff's Complaint Does Not Plausibly Allege that the Purported Harassment Was Severe or Pervasive.

To adequately aver the first element of a prima facie deliberate indifference case, a plaintiff must plead plausible facts showing that the alleged harassment that is severe, pervasive, and objectively offensive that it effectively bars the victim's access to an educational opportunity or benefit." Davis, 526 U.S. at 633. Generally, "isolated incidents are unlikely to create the 'systemic effect' necessary to trigger liability." Raihan v. George Washington Univ., 324 F. Supp. 3d 102, 112 (D.D.C. 2018), app. dismissed, No. 18-7146, 2018 WL 7080496 (D.C. Cir. Nov. 26, 2018) (citation omitted).

The isolated incident between Defendant Knight and Plaintiff—which is the only event preceding Plaintiff's initiation of an internal complaint—is insufficient to establish a severe and pervasive environment. The single alleged bathroom encounter between Plaintiff and Defendant Knight occurred in July of 2024 (Compl., ¶¶ 69-93), the Complaint was filed more than after the and fifth elements of a prima facie deliberate indifference case. Each is discussed in turn.

Co., 961 A.2d 1080, 1090 (D.C. 2008) ("Where the basis of a complaint is, as here, a breach of contract, punitive damages will not lie, even if it is proved that the breach was willful, wanton, or malicious") (citation omitted); *Cummings v. Premier Rehab Keller P.L.L.C.*, 596 U.S. 212, 221 (2022) (punitive damages unavailable for private cause of action brought under Title IX).

IV. THE COURT SHOULD DISMISS PLAINTIFF'S CLAIMS WITH PREJUDICE.

"Dismissal with prejudice is warranted when the allegation of other facts consistent with the challenged pleading could not possibly cure the deficiency." *Abbas v. Foreign Pol'y Grp., LLC*, 783 F.3d 1328, 1340 (D.C. Cir. 2015). The University respectfully submits that no additional factual allegations could cure the defects in Plaintiff's Complaint, and as such, this Court should dismiss Counts I and II with prejudice.

In Count I, Plaintiff explicitly states that, after the bathroom encounter, he "never heard from Dean Knight again." Compl. ¶ 92. It follows that even if afforded the opportunity to amend his pleadings, Plaintiff will never be able to plead the first or fifth elements of a deliberate indifference claim. One isolated incident, with no additional harassment, does not constitute "severe" or "pervasive" harassment such that Plaintiff was denied access to educational benefits. *See Raihan*, 324 F. Supp. 3d at 114; *Boucher*, 2025 WL 3558203 at *22. And, for the reasons outlined herein, Plaintiff has effectively admitted that the University's response did not cause him to undergo harassment, nor did it make him "liable or vulnerable to it." *Davis*, 526 U.S. at 645. Count I is fatally defective, and Plaintiff should not be afforded leave to amend.

Count II is similarly deficient. Plaintiff's breach of contract claim does not identify with specificity an enforceable contractual provision which the University declined to follow. It is well-established that, "[a] contract must be sufficiently definite as to its material terms . . . that the promises and performance to be rendered by each party are reasonably certain." *Rosenthal v. Nat'l*

Co., 961 A.2d 1080, 1090 (D.C. 2008) ("Where the basis of a complaint is, as here, a breach of contract, punitive damages will not lie, even if it is proved that the breach was willful, wanton, or malicious") (citation omitted); *Cummings v. Premier Rehab Keller P.L.L.C.*, 596 U.S. 212, 221 (2022) (punitive damages unavailable for private cause of action brought under Title IX).

IV. THE COURT SHOULD DISMISS PLAINTIFF'S CLAIMS WITH PREJUDICE.

"Dismissal with prejudice is warranted when the allegation of other facts consistent with the challenged pleading could not possibly cure the deficiency." *Abbas v. Foreign Pol'y Grp., LLC*, 783 F.3d 1328, 1340 (D.C. Cir. 2015). The University respectfully submits that no additional factual allegations could cure the defects in Plaintiff's Complaint, and as such, this Court should dismiss Counts I and II with prejudice.

In Count I, Plaintiff explicitly states that, after the bathroom encounter, he "never heard from Dean Knight again." Compl. ¶ 92. It follows that even if afforded the opportunity to amend his pleadings, Plaintiff will never be able to plead the first or fifth elements of a deliberate indifference claim. One isolated incident, with no additional harassment, does not constitute "severe" or "pervasive" harassment such that Plaintiff was denied access to educational benefits. *See Raihan*, 324 F. Supp. 3d at 114; *Boucher*, 2025 WL 3558203 at *22. And, for the reasons outlined herein, Plaintiff has effectively admitted that the University's response did not cause him "undergo harassment" nor did it make him "liable or vulnerable to it." *Davis*, 526 U.S. at 645. Count I is fatally defective, and Plaintiff should not be afforded leave to amend.

Count II is similarly deficient. Plaintiff's breach of contract claim does not identify with specificity an enforceable contractual provision which the University declined to follow. It is well-established that, "[a] contract must be sufficiently definite as to its material terms . . . that the promises and performance to be rendered by each party are reasonably certain." *Rosenthal v. Nat'l*

Produce Co., 573 A.2d 365, 370 (D.C. 1990). Even if Plaintiff could specify the source of the alleged "promise" of non-harassment he references, such a promise is purely aspirational and not a binding contractual term, as a matter of law.

These pleading defects cannot be cured. The Court should dismiss Counts I and II with prejudice.

Dated: March 19, 2025

Respectfully submitted,

CONCLUSION

In considering the foregoing, American University respectfully requests that the Court dismiss Plaintiff Kris Estrada's Complaint, with prejudice, for failure to state a claim upon which relief can be granted.

Respectfully submitted,

SAUL EWING LLP

March 19, 2025

/s/Timothy D. Intelisano

Timothy D. Intelisano (D.C. Bar. No. 90033254)
1919 Pennsylvania Avenue NW, Suite 550
Washington, D.C. 20006
Tel: (202) 333-8800
Fax: (202) 337-6065
timothy.intelisano@saul.com

James A. Keller (*Pro Hac Vice* forthcoming)
1735 Market Street, Suite 3400
Philadelphia, PA 19103-7504
Tel: (215) 972-7777
james.keller@saul.com